

## 26TRCV01246 26TRCV01246

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-06

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Rule 3.1345 requires that a motion to compel

or to quash the production of documents or tangible things at a deposition be accompanied by a separate statement. (Rules of Court, rule 3.1345 (a)(5).)

Furthermore, the Court has found that “obtaining business records through a deposition subpoena is a deposition within the plain meaning of the Civil Discovery Act.” (Naser v. Lakeridge Athletic Club (2014) 227

Cal.App.4th 571, 578.) Thus, the instant motion is deficient. However, as

Defendant provided a separate statement in the Reply, and because whether a separate statement is required for a motion to quash subpoena is not a clear question of law, the Court finds that denying the instant motion with prejudice would be unfairly harsh on Defendant.

Therefore, the Court denies the Motion to

Quash Subpoena without prejudice.